

FEDERAL MARITIME COMMISSION

Office of the Administrative Law Judges

NAXA ELECTRONICS, INC., *Claimant*

v.

OCEAN NETWORK EXPRESS PTE. LTD., ORIENT OVERSEAS
CONTAINER LINE LIMITED, F.C.L. LOGISTICS LTD., AND
SINPEX CONNECTION LOGISTICS LIMITED, *Respondents*.

DOCKET NO. 2066(I)

Served: July 27, 2026

ORDER OF: Erin M. WIRTH, *Small Claims Officer*.

INITIAL DECISION DISMISSING PROCEEDING¹

On June 18, 2026, the Office of the Secretary (“OS”) of the Federal Maritime Commission (“Commission”) issued a notice (“Notice”) that Claimant, Naxa Electronics, Inc., filed a small claim for informal adjudication (“Claim”) against Respondents, Ocean Network Express Pte. Ltd., Orient Overseas Container Line Limited, F.C.L. Logistics Ltd., and Sinpex Connection Logistics Limited. The Notice directs Respondents to file a response and indicate whether they consent to adjudication of the Claim under the informal procedures provided at Subpart S. The Notice instructs that the Respondents’ filings should be submitted to the Office of Administrative Law Judges (“OALJ”).

OALJ did not receive a response to the Claim from Respondents. Instead, on June 30, 2026, OS received an *ex parte* email from Claimant’s counsel. The email states: “Attached for filing please find a Notice of Dismissal in Docket No. 2066(I), Naxa Electronics, Inc. v. Ocean Network Express Pte. Ltd. et al.” The attached Notice of Dismissal requests an order of dismissal without prejudice, arguing:

Here, Naxa submitted its small claims complaint in this matter on June 16, 2026 seeking the waiver of certain detention charges assessed by Respondents. The Commission served the small claims complaint on Respondents Ocean Network Express Pte. Ltd., Orient Overseas Container Line Limited, and Sinpex Connection Logistics Limited on June 18, 2026 requiring a response by July 13, 2026. Since Naxa submitted its small claims complaint, Naxa has learned that all of the detention charges which are the subject of its small claims complaint have been waived and that Naxa is no longer responsible for their payment. As of the

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

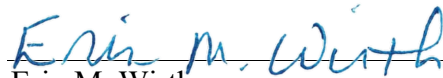
date of this filing, Respondents have not filed any response to the small claims complaint. For these reasons, Naxa seeks to withdraw its small claims complaint.

WHEREFORE, Naxa respectfully requests an Order of Dismissal Without Prejudice under 46 C.F.R. § 502.72(a)(1).

Notice of Dismissal, at 2.

“Settlement is strongly encouraged in administrative proceedings and is embodied in the Administrative Procedure Act (APA) and in the Commission’s precedent and rules.” *SSA Terminals, LLC v. City of Oakland*, Dkt. No. 09-08, 2013 WL 9808691 (FMC Sep. 3, 2013) (citing *Behring International, Inc.*, 20 S.R.R. 1025, 1032-33 (ALJ 1981) (admin. final June 30, 1981); *Pennsylvania Gas & Water Co. v. Federal Power Comm’n*, 463 F.2d 1242, 1247 (D.C. Cir. 1972)). The Commission favors settlements that “result in a savings of time for the parties, the lawyers, and the courts and it is thus advantageous to judicial administration.” *Old Ben Coal Co. v. Sea-Land Serv., Inc.*, 18 S.R.R. 1085, 1092 (1978). While the “Commission has a long-standing history of reviewing settlement agreements to assure that they accord with law and public policy,” *SSA Terminals*, 2013 WL 9808691, there is no indication that the parties in this case have executed a written settlement agreement. Rather, Claimant states simply that because the disputed charges are no longer disputed, the claim should be dismissed. There is no indication that this resolution violates any law or policy, or was the result of any fraud, duress, undue influence, mistake, or other defects.

Accordingly, it is hereby **ORDERED** that this proceeding be **DISMISSED WITHOUT PREJUDICE**.



Erin M. Wirth
Small Claims Officer